

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Team # 5	CCRB Case #: 201115628	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/05/2011 9:00 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 83	18 Mo. SOL 6/5/2013	EO SOL 6/5/2013	
Date/Time CV Reported Tue, 12/06/2011 8:10 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/06/2011 8:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Derek Almeida	25236	946426	083 PCT
2. SGT Nicholas Van Dyke	02363	927819	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Nicholas Van Dyke	Abuse: Sgt. Nicholas Van Dyke supervised the frisk of § 87(2)(b)	§ 87(2)(b)
B.POM Derek Almeida	Abuse: PO Derek Almeida frisked § 87(2)(b)	§ 87(2)(b)
C.SGT Nicholas Van Dyke	Abuse: Sgt. Nicholas Van Dyke supervised the search of § 87(2)(b)	§ 87(2)(b)
D.POM Derek Almeida	Abuse: PO Derek Almeida searched § 87(2)(b)	§ 87(2)(b)
E.SGT Nicholas Van Dyke	Abuse: Sgt. Nicholas Van Dyke supervised the search of the car in which § 87(2)(b) was an occupant.	§ 87(2)(b)
F.POM Derek Almeida	Abuse: PO Derek Almeida searched the car in which § 87(2)(b) was an occupant.	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 6, 2011, § 87(2)(b) filed a complaint with the CCRB via telephone. A summary of his complaint is outlined below.

At approximately 9:00 p.m. on December 5, 2011, § 87(2)(b) and § 87(2)(b) were stopped by PO Derek Almeida and Sgt. Nicholas Van Dyke near the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A: Abuse of Authority – Sgt. Nicholas Van Dyke supervised the frisk of § 87(2)(b)**
- **Allegation B: Abuse of Authority – PO Derek Almeida frisked § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation C: Abuse of Authority – Sgt. Nicholas Van Dyke supervised the search of § 87(2)(b)**
- **Allegation D: Abuse of Authority – PO Derek Almeida searched § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation E: Abuse of Authority – Sgt. Nicholas Van Dyke supervised the search of the car in which § 87(2)(b) was an occupant.**
- **Allegation F: Abuse of Authority – PO Derek Almeida searched the car in which § 87(2)(b) was an occupant.** § 87(2)(g)
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§ 87(2)(g)

This case was initially assigned to Investigator Jihan Varisco on December 6, 2011. On July 11, 2012, the case was reassigned to Investigator Owen Godshall, the undersigned, when Investigator Varisco left the agency.

§ 87(2)(b) accepted mediation on January 1, 2012. The case was referred to mediation on January 23, 2012. On May 17, 2012, the case was returned to investigation due to officer rejection.

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a 5'6", 155 pound Hispanic male with brown hair and brown eyes.* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided his initial complaint on December 6, 2011 (Encl. 6A-B) and a telephone statement on January 5, 2011 (Encl. 7A). On June 5, 2012, § 87(2)(b) was interviewed at the CCRB (Encl. 7B-C), § 87(2)(g).

At approximately 9 p.m. on December 5, 2011, § 87(2)(b) and his cousin, § 87(2)(b) were sitting in a parked car near the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) had come to drop off § 87(2)(b) who resided nearby at § 87(2)(b). § 87(2)(b)'s car was parked on the left side of the street, in front of a fire hydrant, with the engine running.

While the two cousins sat in the car, an unmarked black sedan pulled up behind them. Two plainclothes officers, identified through the course of the investigation as Sgt. Nicholas Van Dyke and PO Derek Almeida of the 83rd Precinct, got out of the unmarked car and approached § 87(2)(b)'s vehicle. PO Almeida came to the driver's side, while Sgt. Van Dyke went to the passenger's side. PO Almeida told § 87(2)(b) to put his hands on the steering wheel, and to turn the car off. § 87(2)(b) complied.

PO Almeida asked § 87(2)(b) to step out of the car, but § 87(2)(b) instead of complying, asked PO Almeida to explain why he was being stopped. PO Almeida, in lieu of replying, opened § 87(2)(b)'s front door and pulled him out by the wrist. At the same time, Sgt. Van Dyke removed § 87(2)(b) from the passenger's seat, though § 87(2)(b) did not know how this was done. Once he was outside the car, PO Almeida asked § 87(2)(b) if he had any sharp objects in his pocket. § 87(2)(b) replied that he did not. PO Almeida then reached his hands into a number of § 87(2)(b)'s pockets, including four on his jacket and four on his pants. He removed § 87(2)(b)'s license, registration and money from his pockets. In his telephone statement, § 87(2)(b) stated that PO Almeida frisked him before reaching into his pockets. In his sworn statement, however, § 87(2)(b) stated that he was not frisked.

PO Almeida and Sgt. Van Dyke then sat § 87(2)(b) and § 87(2)(b) on the rear bumper of the car. § 87(2)(b) began complaining about his treatment to Sgt. Van Dyke. Sgt. Van Dyke told him that while the search was inconvenient, it was necessary, stating, "It is what it is." PO Almeida entered the interior of § 87(2)(b)'s car, and looked under the front seats, and opened the glove compartment and center console. This search lasted approximately ten minutes and did not turn up any contraband.

After the search, PO Almeida told § 87(2)(b) that he would have been within his rights to issue him a summons for parking in front of the hydrant. Neither PO Almeida nor Sgt. Van Dyke, however, issued any summonses. § 87(2)(b) asked PO Almeida for his name and shield number, which he provided. The two officers then returned to their car and drove away.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a 5'8", 190-pound Hispanic male with brown hair and brown eyes.* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided a telephone statement, provided on July 19, 2012 (Encl. 8A). On August 17, 2012, he was interviewed at the CCRB (Encl. 8B-C). § 87(2)(g)

At approximately 9:00 p.m. on December 5, 2011, § 87(2)(b) was sitting in a parked car with his cousin, § 87(2)(b) near the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) was in the driver's seat, and § 87(2)(b) was in the passenger's seat. § 87(2)(b) was dropping § 87(2)(b) off after the two had been performing maintenance at a nearby building that § 87(2)(b) manages. Due to construction on the street, § 87(2)(b) was forced to park in front of a fire hydrant. The two had been talking in the car for about thirty minutes, during which time the car was idling. Though it was dark out, the area was illuminated by streetlamps. After a while, both cousins took out their cell phones and began making calls.

As the cousins sat in the car, a dark blue unmarked sedan pulled up behind them. Two plainclothes officers, identified through the course of the investigation as Sgt. Nicholas Van Dyke and PO Derek Almeida of the 83rd Precinct, exited the unmarked car and approached § 87(2)(b)'s vehicle. Sgt. Van Dyke approached § 87(2)(b) on the passenger's side, while PO Almeida approached § 87(2)(b) on the driver's side. Not wanting to give the officers the impression that they were holding weapons, both § 87(2)(b) and § 87(2)(b) held their phones out in front of them, to make clear what was in their hands. § 87(2)(b) became upset when the officers approached, as he felt he was often being pulled over unfairly. PO Almeida asked the cousins what they were doing in the area. § 87(2)(b) replied that he was dropping § 87(2)(b) off at home. § 87(2)(b) was angry, and repeatedly called PO Almeida an "asshole." The officers did not respond to § 87(2)(b)'s insults.

Both officers then told § 87(2)(b) and § 87(2)(b) to get out of the car. § 87(2)(b) immediately exited the car, but § 87(2)(b) remained in the car. After he got out, § 87(2)(b) faced away from the vehicle, turning his back towards § 87(2)(b). § 87(2)(b) then exited the vehicle. Since his back was turned, § 87(2)(b) could not tell if § 87(2)(b) was forcibly removed or exited of his own volition. § 87(2)(b) then heard § 87(2)(b) ask PO Almeida, "Why are you checking me?" He was able to turn his head far enough to see § 87(2)(b) in his peripheral vision. He saw PO Almeida frisking § 87(2)(b) around the chest.

After the frisk, Sgt. Van Dyke and PO Almeida moved § 87(2)(b) and § 87(2)(b) to the back of the car. PO Almeida then entered § 87(2)(b)'s car and searched the interior. He looked in the front and back seats, as well as in the glove compartment. § 87(2)(b) protested the search to Sgt. Van Dyke, but he responded that the search was standard procedure. He also stated that he was PO Almeida's supervisor. After the search was concluded, § 87(2)(b) asked PO Almeida for his name and shield number. PO Almeida stated the information rapidly at first, making it difficult to hear. Sgt. Van Dyke then told him to repeat the information again, this time slowly, so § 87(2)(b) could hear it. PO Almeida complied with Sgt. Van Dyke's orders. The two officers then returned to their car and drove away.

NYPD Statement(s):

Subject Officer: PO DEREK ALMEIDA

- PO Almeida, § 87(2)(b) old at the time of the incident, is a 5'9", 180-pound Hispanic male with brown hair and brown eyes.
- On December 5, 2011, PO Almeida worked from 3:00 p.m. to 11:15 p.m. He was assigned to SNEU, and worked with Sgt. Nicholas Van Dyke. He was in uniform, and assigned to an unmarked Crown Victoria, RMP #§ 87(2)(b)

Memo Book

At 9:00 p.m. on December 5, 2011, PO Almeida stopped two males at the corner of § 87(2)(b) and § 87(2)(b). One, a 5'9", 170-pound black Hispanic male, refused to provide ID. The other, § 87(2)(b) was angry and uncooperative. The males were stopped for suspicion of criminal possession of a weapon (Encl. 9A-B).

Stop, Question and Frisk Reports § 87(2)(b) and #§ 87(2)(b)

According to the Stop, Question and Frisk Reports PO Almeida prepared regarding the incident, two males, one a 5'7", § 87(2)(b) white Hispanic male, the other a 5'9", § 87(2)(b) black Hispanic male, were stopped for suspicion of criminal possession of a weapon. These descriptions match § 87(2)(b) and § 87(2)(b) respectively. Both reports list the circumstances leading to the stop as "Actions indicative of engaging in drug transaction," "Furtive movements," and, "Actions indicative of engaging in violent crimes." Both list additional factors as "Area has high incidence of reported offense," and, "Time of day/week corresponding to criminal activity." Both reports indicate that a frisk was performed on the basis of "Refusal to comply with officers directions," and, "Furtive movements." Both reports indicate that a search was performed on the basis of a "Hard object" (Encl. 9C-F).

CCRB Testimony

On September 17, 2012, PO Almeida was interviewed at the CCRB (Encl. 9G-I). At approximately 9:00 p.m. on December 5, 2011, PO Almeida was driving in an unmarked car with his partner near the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. Though PO Almeida did not recall the name of his partner at the time, the investigation identified him as Sgt. Nicholas Van Dyke of the 83rd Precinct. PO Almeida noticed a car parked on the side of the road in front of a fire hydrant. Two individuals, identified through the course of the investigation as § 87(2)(b) and § 87(2)(b) were inside. § 87(2)(b) was in the driver's seat, and § 87(2)(b) was in the passenger's seat. The officers stopped behind the parked car and exited their vehicle. PO Almeida only approached the car because it was parked in front of the hydrant.

Later in the interview, when shown a copy of the Stop, Question and Frisk Reports he prepared regarding the incident, which noted possible drug use as one of the reasons he stopped § 87(2)(b) and § 87(2)(b) PO Almeida stated that the windows of the car were fogged up. He had made no mention of this during his initial account of the incident. The fogged windows made him suspect that the occupants of the vehicle were using drugs inside, possibly smoking marijuana. He did not recall seeing anything else in the car, such as a lit cigarette, that might have indicated this. He did not recall seeing any smoke emanating from the vehicle, or smelling any particular odors. PO Almeida maintained that, despite this suspicion, the fire hydrant was the primary reason for approaching § 87(2)(b) and § 87(2)(b)

PO Almeida walked up to the driver's side of the car, while Sgt. Van Dyke went to the passenger's side. As he passed the rear passenger window on the driver's side, the two occupants looked over to PO Almeida, making eye contact with him. PO Almeida described their appearance at that time as nervous. Both individuals then turned and made a forward motion. Initially, PO Almeida described this forward motion as dropping down and making a "reaching" movement. He specified that § 87(2)(b) who was in the driver's seat, reached underneath the steering wheel. PO Almeida was unable to specify where § 87(2)(b) was reaching. When later asked if he knew what § 87(2)(b) and § 87(2)(b) were reaching for, PO Almeida revised his description of the forward motion, instead characterizing it as a crouching movement, with no visible reaching. The two remained in this lowered position for a few seconds. PO Almeida, drawing on his experience as a police officer, took the combination of the occupants' nervous looks and forward motion to mean that the occupants might be trying to conceal something, such as a firearm.

When PO Almeida reached § 87(2)(b)'s window, § 87(2)(b) sat back upright. PO Almeida could not see § 87(2)(b)'s hands, so he asked § 87(2)(b) to show his hand. § 87(2)(b) who quickly became irate and angry, asked PO Almeida why he was being stopped. § 87(2)(b) was loud, and used profanity, but PO Almeida did not recall exactly what he said. PO Almeida then told § 87(2)(b) to step out of the vehicle, which he did. PO Almeida then frisked § 87(2)(b) around the waist to verify that he was not armed. Initially, PO Almeida indicated that he did not feel anything on § 87(2)(b)'s waist. Later, when asked if he saw anything on § 87(2)(b)'s waist, he stated that he saw a bulge on § 87(2)(b)'s waist. He did not recall the dimensions of the bulge, or which side of § 87(2)(b)'s body it was on. The bulge was concealed from view by § 87(2)(b)'s shirt, which hung down over his waist. PO Almeida suspected that the bulge was a firearm, due to § 87(2)(b)'s nervous eye contact and forward movement. PO Almeida then patted the bulge through § 87(2)(b)'s shirt. When PO Almeida felt the bulge, he determined that it was a cell phone clipped to § 87(2)(b)'s waist. PO Almeida did not reach into § 87(2)(b)'s pockets, or lift his shirt.

After the frisk, PO Almeida asked § 87(2)(b) for his identification, which he provided. At around this time, § 87(2)(b) exited the vehicle. PO Almeida did not recall whether § 87(2)(b) did this on his own, if he was ordered out by an officer, or if he was removed by force. PO Almeida then looked over the interior of § 87(2)(b)'s vehicle. § 87(2)(b)'s door was still open from when he exited the vehicle, granting PO Almeida a larger field of view inside. PO Almeida looked in with his flashlight, examining the driver's seat and the floor for any weapons § 87(2)(b) might have concealed. During this search, PO Almeida leaned far enough forward to breach the plane of the door.

Initially, PO Almeida stated that he had no interaction with § 87(2)(b). Later, he stated that he asked § 87(2)(b) for his identification, and that he refused this request. PO Almeida did not specify how many times he asked § 87(2)(b) for his identification, the details of § 87(2)(b)'s response, or § 87(2)(b)'s demeanor when he refused the request. PO Almeida confirmed that at that moment, he still suspected that § 87(2)(b) might be armed, since he had also made the same nervous eye contact and movement as § 87(2)(b). He did not, however, frisk or search § 87(2)(b). When asked why he did not frisk § 87(2)(b), PO Almeida stated that § 87(2)(b)'s movement had been slower, and that he was able to keep track of § 87(2)(b)'s hands. This was enough to reduce PO Almeida's suspicion below the point where he felt a frisk was necessary. After answering this question, PO Almeida revised his earlier assertion, and stated that he did not recall frisking § 87(2)(b).

Subject Officer: SGT. NICHOLAS VAN DYKE

- Sgt. Van Dyke, § 87(2)(b) old at the time of the incident, is a 5'8", 190-pound white male with brown hair and brown eyes.
- At the time of the incident, Sgt. Van Dyke served in the 83rd Precinct. He is currently a lieutenant assigned to the 113th Precinct. On December 5, 2011, Sgt. Van Dyke worked from 2:50 p.m. to 11:47 p.m. He was the SNEU supervisor, and worked with PO Derek Almeida. He was in uniform, and assigned to an unmarked Crown Victoria, RMP #§ 87(2)(b)

Memo Book

Sgt. Van Dyke had no memo book entries related to the incident (Encl. 10A-C).

CCRB Testimony

On October 10, 2012, Sgt. Van Dyke was interviewed at the CCRB (Encl. 10D-E). Sgt. Van Dyke had no recollection of the incident, even after being given a brief synopsis of the event, and viewing the memo book entry and Stop, Question and Frisk Reports prepared by PO Almeida. Sgt. Van Dyke stated that he was with PO Almeida for the duration of their tour.

NYPD Document(s)

83rd Precinct Roll Call

The tour 3 roll call for the 83rd Precinct on December 5, 2011 lists Sgt. Van Dyke as the Anti-Crime supervisor. PO Almeida is assigned to Anti-Crime. Both officers were assigned to RMP #§ 87(2)(b) (Encl. 11A-F).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 20, 2012, more than five months after the filing deadline, with regard to the incident (Encl. 12A).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. 4A).

Subject Officer(s) CCRB History

- PO Almeida has been a member of the service for 4 years and there are no substantiated CCRB allegations against him (Encl. 2A-B).
- Sgt. Van Dyke has been a member of the service for 11 years and there are no substantiated CCRB allegations against him (Encl. 3A).

Conclusion

Identification of Subject Officer(s)

- PO Almeida admitted interacting with § 87(2)(b) § 87(2)(b) provided PO Almeida's name and shield number in his initial complaint. He identified PO Almeida as the officer who

searched both him and the car. § 87(2)(g)

- § 87(2)(b) described PO Almeida's partner as a 34-year-old, 5'7", 175-pound white male with brown hair. § 87(2)(b) described PO Almeida's partner as a 5'11", 200-pound white male in his late 30s. Sgt. Van Dyke, § 87(2)(b) old at the time of the incident, is a 5'8", 190 pound white male with brown hair. Sgt. Van Dyke is listed as PO Almeida's partner both on the 83rd Precinct roll call, and in both officers' memo books. Sgt. Van Dyke also stated that he would have been with his assigned partner for the entire tour. § 87(2)(g)

Investigative Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
-
-

Allegation A: Abuse of Authority – Sgt. Nicholas Van Dyke supervised the frisk of § 87(2)(b)

Allegation B: Abuse of Authority – PO Derek Almeida frisked § 87(2)(b)

In his telephone statement, § 87(2)(b) stated that he was frisked. In his sworn statement, he asserted that he was not frisked. § 87(2)(b) and PO Almeida both stated that § 87(2)(b) was frisked. The Stop, Question and Frisk Report for § 87(2)(b)'s stop also indicates that he was frisked. § 87(2)(g).

PO Almeida stated that he suspected that both § 87(2)(b) and § 87(2)(b) might be armed. The Stop, Question and Frisk Report prepared for § 87(2)(b) indicated that PO Almeida suspected this based upon § 87(2)(b)'s furtive movements and his refusal to comply with the officers' commands. In his testimony, PO Almeida stated that he based this suspicion on the nervous glances they gave him, and the forward motion both civilians allegedly made as he approached their car. PO Almeida also stated he was unable to see § 87(2)(b)'s hands when he first arrived at the driver's-side window. While § 87(2)(b) stated that both he and his cousin had their hands raised when the officers approached, § 87(2)(b) stated that PO Almeida immediately ordered him to place his hands on the steering wheel when he first approached the car. § 87(2)(g).

An officer may conduct a frisk if he or she reasonably suspects that an individual is armed. People v. DeBour, 40 N.Y.2d 210 (1976) (Encl. 1A-K).

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

Allegation C: Abuse of Authority – Sgt. Nicholas Van Dyke supervised the search of § 87(2)(b) [REDACTED]

Allegation D: Abuse of Authority – PO Derek Almeida searched § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] stated that PO Almeida searched him by reaching into several pockets, both in his pants and in his jacket, removing several objects. PO Almeida denied searching § 87(2)(b) [REDACTED]. He also stated that when he frisked § 87(2)(b) [REDACTED] he felt a square bulge on his waist. PO Almeida determined that the bulge was a cell phone by patting it. The Stop, Question and Frisk

Report PO Almeida prepared for the incident noted that a search of § 87(2)(b) was performed on the basis of a hard object on his person. § 87(2)(g)

§ 87(2)(g)

An officer may only reach into a person's pocket to examine an object detected by a frisk if the object is of a size and shape that it can reasonably be mistaken for a weapon. People v. Hill, 171 A.D.2d 1017 (1991) (Encl. 1L-N).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation E: Abuse of Authority – Sgt. Nicholas Van Dyke supervised the search of the car in which § 87(2)(b) was an occupant.

Allegation F: Abuse of Authority – PO Derek Almeida searched the car in which § 87(2)(b) was an occupant.

It is undisputed that PO Almeida entered and searched § 87(2)(b)'s car. § 87(2)(b) and § 87(2)(b) both alleged that PO Almeida entered the car and searched under the seats. § 87(2)(b) stated that PO Almeida opened the glove compartment and the center console, while § 87(2)(b) only stated that he opened the glove compartment. PO Almeida stated that based upon his suspicion that § 87(2)(b) was armed, he leaned into the driver's seat, breaking the plane of the door, and briefly examined the visible interior with his flashlight.

Officers are allowed to perform limited vehicle searches given a reasonable suspicion that the vehicle contains a weapon that might be used to harm the officers. People v. Omowale, 83 A.D.3d 614 (2011) (Encl. 1O-S). The glove compartments cannot be included in limited searches of vehicles to secure them for weapons. People v. Johnson, 1 N.Y.3d 252 (2003) (Encl. 1T-V). The general automobile exception for warrantless searches states that an officer requires probable cause to search a closed container within a vehicle. A traffic violation by itself does not provide probable cause to search a closed container for contraband. People v. Castro-Gonzalez, 9 Misc. 3d 446 (2005 – Sup Ct Queens Cty) (Encl. 1W-X).

§ 87(2)(g)

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Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date